

TENTATIVE RULINGS

FOR: July 31, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. 3 Zoom

Join by Video

<https://www.zoomgov.com/j/1605557082?pwd=2LHT804qHaQdoqbfaaG1Rzswp9uowO.1>

Department 3 will not be permitting remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

**“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer.
(Cal. Rules of Court, Rule 1.150(c) & (d))**

**** Wurm v. Pitkow will be heard in Dept. 3
All matters originally set in Dept. B will be heard in Dept. A ****

AMENDED MOTION FOR RELIEF UNDER CODE OF CIVIL PROCEDURE SECTION 473(b) FROM THE COURT’S MAY 21, 2026, ORDER ADOPTING THE TENTATIVE RULING ON PLAINTIFF’S MOTION TO TAX COSTS

TENTATIVE RULING: The motion is DENIED.

A. PROCEDURAL BACKGROUND

Plaintiff Julianne Wurm (“Plaintiff”) moves, pursuant to Code of Civil Procedure section 473, subdivision (b),¹ for relief from the Court’s May 21, 2026 order adopting the tentative ruling denying Plaintiff’s Motion to Tax Costs (“May 21 Order”).

By Minute Order dated June 30, 2026, Plaintiff’s original Motion for Relief related to the Court’s May 21 Order (“Original Motion”) came on for hearing and was continued to July 31 to allow Plaintiff an opportunity to remedy a notice defect. Plaintiff was directed to prepare an Amended Notice for the continued hearing date, provide timely service of the Amended Notice and moving papers, and file a proof of service (“POS”) pursuant to Rules of Court, rule 3.1300, subdivision (c). (See 6/30/26 Minute Order.)

B. PROCEDURAL DEFECTS

Plaintiff filed an Amended Notice and *amended* moving papers (“Amended Motion”) on July 6. The filing of amended moving papers is improper, as the Court’s June 30 Minute Order only directed Plaintiff to prepare an Amended Notice. Moreover, the filing of an Amended Motion creates confusion as to whether Defendants’ Opposition to the Original Motion is operative. (See 6/8/26 Opposition.) Because there is no Opposition to the Amended Motion in the file, the Court will consider Defendants’ Opposition to the Original Motion with the present matter. There is no Reply by Plaintiff on file with respect to either the Original or Amended Motion, despite Plaintiff being granted leave to file a reply. (See 6/30/26 Minute Order, p. 2.)

Even more troubling is the fact that there is no POS of either the Amended Motion or Original Motion on Defendants. This was expressly required by the Court’s June 30 Minute Order and Plaintiff has failed to comply therewith. Moreover, as noted, there is no Opposition to the Amended Motion and therefore it is unclear whether Defendants even received a copy of it. Furthermore, this is now the fourth time that Plaintiff has failed to comply with all procedural requirements for filing and serving motions, including the requirement to file a POS. On each of the three prior occasions, the Court has stated and cited the rules governing such procedures, and has afforded Plaintiff a continuance to remedy the defects. (See 6/30/26, 4/21/26, 11/25/25 Minute Orders.) The Court cautions Plaintiff’s counsel that the Court may elect to outright deny her motions if she continues to fail to comply with all service and filing requirements going forward.

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

C. SUBSTANTIVE DEFECTS

Even were the Court to overlook the procedural defects, the Motion fails on its merits.

By way of this Motion, Plaintiff seeks an order (1) vacating the Court's May 21 Order, (2) restoring Plaintiff's motion to tax costs to the calendar, and (3) permitting oral argument at the restored hearing. (See Amended Notice, 3:3-5.) The only ground raised for the relief sought is that "Plaintiff's counsel, Dylan Hackett, made a good-faith mistake, and/or was placed in a position of inadvertence, surprise, and excusable neglect, regarding the department in which oral argument was to occur. Counsel received notice identifying Department A. Counsel appeared in Department A. When counsel appeared in Department A, the Court advised that the matter was in Department B. Counsel immediately proceeded to Department B, but upon arrival, the court clerk advised that the case had already been called." (Amended Notice, 2:11-16; Amended Mem., 5:1-5, 8-10, 6:5-9, 7:10-14, 20-23, 26-28, 8; see generally Amended Declaration of Dylan Hackett ("Amd. Hackett Decl.").)

However, as raised through Defendants' Opposition, even had Plaintiff's counsel been present at the hearing on May 21, that fact, alone, would not have necessarily permitted Plaintiff's counsel to present oral argument at the May 21 hearing.

"Generally, oral argument on matters for which a tentative ruling has been posted will be permitted only if a party notifies all other parties and the Court by 4:00 p.m. on the Court day before the hearing that the party intends to appear and argue.... If notice of intent to appear has not been given to all parties and to the Court by 4:00 p.m., no oral argument will be permitted and the tentative ruling will become the Court's ruling unless all other parties are present and the Court exercises its discretion to permit argument." (Napa County Superior Court, Local Rule 2.9.)

Here, a tentative ruling was posted for Plaintiff's motion to tax costs on May 20. The Court's records reflect that neither party gave notice to the Court of an intent to appear at the hearing on May 21. Moreover, Defendants argue in Opposition—albeit without evidentiary support—that defense counsel was not provided notice. Furthermore, Plaintiff nowhere addresses compliance with Local Rule 2.9 for the May 21 hearing in her present motions. Thus, it is not necessarily true that the Court would have permitted oral argument *even if* the alleged department confusion underlying Plaintiff's present motion was not an issue on May 21.

Thus, Plaintiff's attempt to explain her counsel's failure to appear at the May 21 hearing is not, on its own, grounds to relieve Plaintiff from the May 21 Order and permit Plaintiff's counsel to present oral argument at a restored hearing thereon. (See § 473, subd. (b) ["The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect."].)

Rather, the additional mistake, inadvertence, surprise, or excusable neglect that Plaintiff's counsel needed to address was with respect to her failure to comply with Local Rule 2.9.

However, as noted, Plaintiff does not address that issue through her Original or Amended Motions, nor did Plaintiff file a reply to Defendants' Opposition, *which expressly raised this point*.

The motion fails for the foregoing reason alone. Even assuming *arguendo* the sole ground raised in the motion was sufficient on its own, Plaintiff has failed to sufficiently show mistake, inadvertence, surprise, or excusable neglect with respect to that ground.

First, the only explanation Plaintiff provides for appearing in Department A on May 21, instead of Department B, is that "[t]he notice [he] received identified Department A." (Amd. Hackett Decl., ¶ 5.) Without more details, this simply fails to persuade the Court that there was, in fact, any department confusion, particularly when the matter has been pending with this Court since 2024, and has been primarily heard in Department B, where the trial of the matter occurred in March 2026.

Second, Plaintiff presents evidence tending to show that he did not appear in *either* Departments A or B until approximately 9:10 a.m. on May 21. (See Amd. Hackett Decl., ¶¶ 6-8, 11 [stating that, "when" he appeared in Department A, the Court advised him that the matter was in Department B; he "immediately" proceeded to Department B, but when he arrived in Department B, the court clerk informed him that the case had already been called; and acknowledging that he later came to know the matter was called "at approximately 9:10 a.m."].) Yet, Plaintiff's *own* motion noticed the hearing for 8:30 a.m. Plaintiff does not explain or address the 40-minute delay, separate from the alleged department confusion, and, therefore, fails to justify the requested relief.

For all the foregoing reasons, the Motion is DENIED.

FAMILY LAW CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Jesse Powell et al v. Christina Yee et al

25FL000217

[1] APPLICATION OF JOSEPH STUEVER FOR ADMISSION PRO HAC VICE

TENTATIVE RULING: The application is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

[2] APPLICATION OF ROBERT DENUNZIO FOR ADMISSION PRO HAC VICE

TENTATIVE RULING: The application is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

[3] APPLICATION OF BRITTANY L. SUKIENNIK FOR ADMISSION PRO HAC VICE

TENTATIVE RULING: The application is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

[4] APPLICATION OF KEVIN J. ORSINI FOR ADMISSION PRO HAC VICE

TENTATIVE RULING: The application is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Jesus Rafael Gonzalez Cruz et al v. Nicholas Patrick Essig et al

25CV001675

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The Motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

.....
Andra Watson v. Amazon.com Services, LLC

25CV002136

DEFENDANT AMAZON.COM SERVICES LLC'S MOTION TO COMPEL FURTHER RESPONSES AND REQUEST FOR SANCTIONS IN THE AMOUNT OF \$7,143.50

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff Andra Watson is ordered to serve, within 14 calendar days of Notice of Entry of the instant order, a further response to RFP No. 16, limited, however, to "DOCUMENTS sufficient to identify (by name, case number, and court) any other lawsuit and/or administrative action commenced on or after January 1, 2016, in which WATSON alleges damages in the form of emotional injury, depression, pain, discomfort, fatigue, and/or anxiety." Mr. Watson shall also produce documents responsive to the request, as limited, within the same period. The request by Defendant Amazon.com Services, LLC (Amazon) for an award of monetary sanctions is DENIED. Amazon is directed to serve and file a Notice of Entry of the instant order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Amazon moves, pursuant to Code of Civil Procedure sections 2031.310, 2023.010, and 2023.030, and California Rules of Court Rules 3.1345 and 3.1348, for an order compelling Plaintiff Andra Watson "to serve verified and complete responses within 14 days" to Defendant's Request for Production of Documents to Plaintiff, Set One, Request No. 16 (RFP No. 16).

(Notice of Motion at 2:3-10.) Defendant also seeks an award of monetary sanctions against Plaintiff and his counsel of record, jointly and severally, in the sum of \$7,143.50. Amazon so moves on grounds that “Plaintiff served an evasive and incomplete response to RFP No. 16, interposing boilerplate objections and unilaterally narrowing the temporal scope of the request without any basis or agreement from Defendant.” (*Id.* at 2:18-20.)

RFP No. 16 seeks “DOCUMENTS sufficient to identify (by name, case number, and court) any other lawsuit and/or administrative action involving WATSON FROM January 1, 2016 to the present.” (Separate Statement at 2:5-7 (Sep. St.).)

The Court finds that Amazon has shown good cause, but for only a subset of the requested documents. (See (Code Civ. Proc., § 2031.310, subd. (b)(1) [“A motion [to compel further response to a request for production of documents] shall . . . set forth specific facts showing good cause justifying the discovery sought by the demand”].) Amazon argues that “Plaintiff alleges damages including emotional injury, depression, pain, discomfort, fatigue, and anxiety. Any prior lawsuit or administrative action, including any personal injury action filed within the time period specified, is relevant to the existence, nature, and extent of Plaintiff’s claimed injuries and whether such injuries predate Plaintiff’s employment with Defendant. Defendant is entitled to explore whether and to what extent Plaintiff’s alleged damages existed prior to his employment with Defendant.” (Sep. St. at 2:28-3:5; see also Support Memo at 7:17-24.)

The argument has merit. It does not, however, constitute good cause for the breadth of the request. Rather, the Court finds that it is sufficient to show good cause for discovering documents that identify other lawsuits and/or administrative actions in which Mr. Watson alleged damages in the form of emotional injury, depression, pain, discomfort, fatigue, and/or anxiety.

Mr. Watson objected to the request on grounds that it was overbroad. (See Sep. St. at 2:9-12.) Mr. Watson argues, through the Opposition, that “If Defendant wanted discovery limited to prior proceedings involving physical injuries, emotional distress, disability, workers’ compensation, employment, wage loss, or similar damages issues, it could have drafted a request saying so. It did not. Instead, it served a request broad enough to encompass entirely unrelated legal matters, then moved to compel after Plaintiff objected that the request was overbroad and irrelevant as phrased.” (Opposition at 4:19-24.) The Court agrees.

Mr. Watson also argues that the request is overbroad in seeking documents relating to a ten-year period. Through his response, he limited the request to a five-year period.

Mr. Watson fails to persuade the Court that this limitation is appropriate; particularly in light of the fact that the request is limited to documents sufficient to identify any litigation and/or administrative actions. As Mr. Watson notes, “RFP No. 16 reaches back to January 1, 2016, five (5) years before the events giving rise to this action.” (Opposition at 4:25-26.) The Court finds good cause for discovery of any litigation and/or administrative actions that were filed in the five years preceding the alleged events.

However, the Court finds the request vague and ambiguous regarding the temporal limitation; It is not clear whether the ten-year period refers to the creation of the document, the filing of the litigation/administrative action, or the pendency of the litigation/administrative action.

Based on the foregoing, the Motion is GRANTED IN PART. Mr. Watson shall, within 14 calendar days of Notice of Entry of the instant order, provide a further response to RFP No. 16, limited, however, to “DOCUMENTS sufficient to identify (by name, case number, and court) any other lawsuit and/or administrative action commenced on or after January 1, 2016, in which WATSON alleges damages in the form of emotional injury, depression, pain, discomfort, fatigue, and/or anxiety.” Mr. Watson shall also produce documents responsive to the request, as limited, within the same period.

With exceptions having no apparent relevance here, “the court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

While the Court ultimately agrees that Amazon is entitled to discover the information over the full ten-year period, it does not find that Mr. Watson’s position, that a five-year period is sufficient, was without substantial justification. The Court finds that both periods are, somewhat, arbitrary. It further finds that the likelihood that a preexisting condition remains relevant diminishes with the age of the initial diagnosis.

Moreover, the Court finds that the imposition of sanctions, here, would be unjust. As noted above, the Court finds merit in Mr. Watson’s objection that RFP No. 16 was overbroad. It also strikes the Court that interrogatories would be a much more effective means of obtaining the sought-after discovery (“identify (by name, case number, and court) of . . . other litigation and/or administrative actions”). The use of requests for production for this purpose, to some extent, invites unnecessary squabbling over whether Mr. Watson is in possession, custody, and/or control of such documents.

Based on the foregoing, Amazon’s request for an award of monetary sanctions is DENIED.

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Vladimir Privalov v. Villa Zinfandel LLC et al

26CV000675

DEMURRER TO PLAINTIFF’S COMPLAINT

TENTATIVE RULING: The Demurrer is SUSTAINED. Plaintiff is granted 10 days’ leave from notice of entry of order to amend. (See Rules of Court, rule 3.1320(g).) Defendant is directed to provide notice of entry of order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTER

Defendant The Bank of New York Mellon f/k/a The Bank of New York, as Trustee for the Certificate holders of the CWMBS Inc., CHL Mortgage Pass-Through Trust 2005-9, Mortgage Pass Through Certificates, series 2005-9 ("Defendant") demurs, pursuant to Code of Civil Procedure section 430.10, subdivision (e),² to Plaintiff Vladimir Privalov's ("Plaintiff") Complaint, filed May 27, 2026.

Defendant's Request for Judicial Notice of recorded documents (Exhibits A-P) and court records (Exhibit Q) is GRANTED, but not for the truth of any disputed factual matter asserted therein. (*Villa Zinfandel, LLC v. Bearman* (2025) 116 Cal.App.5th 848, 858 ["While courts cannot take judicial notice of factual representations in recorded documents, "a court may take judicial notice of ... a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face."].)

The Complaint asserts five causes of action as follows: First Cause of Action for Wrongful Foreclosure, Second Cause of Action for Cancellation of Instruments, Third Cause of Action for Quiet Title, Fourth Cause of Action for Judicial Foreclosure of Judgment Lien, and Fifth Cause of Action for Declaratory Relief.

B. LEGAL STANDARD

A complaint must contain "facts constituting the cause of action." (§ 425.10, subd. (a)(1).) The party against whom a complaint has been filed may object, by demurrer, on the grounds that "[t]he pleading does not state facts sufficient to constitute a cause of action." (§ 430.10, subds. (e).)

A demurrer is treated as "admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must "construe the allegations of a complaint liberally in favor of the pleader." (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) The Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).)

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

Because “[a] demurrer tests only the legal sufficiency of the pleading . . . the question of plaintiff’s ability to prove the [] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

C. DISCUSSION

1. First Cause of Action

Defendant argues that the First Cause of Action fails because Plaintiff has not alleged facts satisfying each element for a claim for wrongful foreclosure.

To state a claim for wrongful foreclosure, a plaintiff must plead that (1) the trustee or mortgagee caused an illegal, fraudulent, or willfully oppressive sale of real property pursuant to a power of sale in a mortgage or deed of trust; (2) the party attacking the sale (usually but not always the trustor or mortgagor) was prejudiced or harmed; and (3) in cases where the trustor or mortgagor challenges the sale, the trustor or mortgagor tendered the amount of the secured indebtedness or was excused from tendering. (*Sciaratta v. U.S. Bank Nat’l Assn.* (2016) 247 Cal.App.4th 552, 561-62.)

As to the first element, Defendant implicitly argues that the Complaint’s theory for an illegal, fraudulent, or willfully oppressive sale is that the trustee failed to give notice of the sale to Plaintiff. (Mem., 10:15-17.) Defendant argues that such theory fails because a trustee is not required to notify a judgment lienholder of a sale absent a request for special notice, and the face of the Complaint shows that Plaintiff could not have properly requested special notice. (Mem., 9:15-10:16.)

Plaintiff does not dispute this in Opposition. Rather, Plaintiff argues that the Complaint pleads another theory satisfying the first element, specifically, that the sale was not properly noticed in general because “the sole recorded and published Notice of Sale [(recorded on September 23, 2021)] set the sale for October 20, 2021; . . . the noticed sale did not occur; and . . . the trustee then conducted the operative sale on a later date [(on or about November 19, 2021)] without recording or publishing any new notice as the statutes require.” (Opp., 3:15-22, 5:21-24, citing Civ. Code, §§ 2924f, 2924g.)

Plaintiff fails to cite to where in his Complaint he contends this theory is pled. While the Court does not find such theory clearly pled in the Complaint, Defendant seems to acknowledge its existence. (Reply, 5:20-22.) Defendant argues, however, that there is no requirement for the service, publishing, or recording of a new notice of sale when a postponement of not more than 365 days from the noticed sale is made. (Reply, 5:22-25, citing Civ. Code, § 2924g, subd. (c)(1).) Thus, Defendant argues that Plaintiff still has not alleged an illegal, fraudulent, or willfully oppressive sale of real property under the theory advanced in Opposition.

Civil Code section 2924g provides that notice of each postponement of the sale proceedings and the reason therefor “shall be given by public declaration by the trustee at the time and place last appointed for sale. A public declaration of postponement shall also set forth

the new date, time, and place of sale and the place of sale shall be the same place as originally fixed by the trustee for the sale. No other notice of postponement need be given.... The trustee shall maintain records of each postponement and the reason therefor.” (Civ. Code, § 2924g, subd. (d)(1).) However, “[i]n the event that the sale proceedings are postponed for a period or periods totaling more than 365 days, the scheduling of any further sale proceedings shall be preceded by giving a new notice of sale in the manner prescribed in Section 2924f [requiring, in part, publication in a newspaper and recordation with the county recorder].” (*Id.*, § 2924g, subd. (c)(2).)

Thus, contrary to Plaintiff’s assertion, the statute does not require the trustee to record or publish new notice for the postponed November 21, 2021 sale that had been originally noticed for October 20, 2021. Plaintiff’s theory that the trustee caused an illegal, fraudulent, or willfully oppressive sale because the trustee failed to record or publish new notice once the noticed October 20, 2021 sale was postponed to November 21, 2021 therefore fails.

Based on the foregoing, the Complaint fails to state facts sufficient to constitute the first element for the First Cause of Action for Wrongful Foreclosure. As a result, the demurrer to the First Cause of Action is SUSTAINED.

Although the above ruling renders it unnecessary for the Court to consider Defendant’s additional arguments on demurrer to the First Cause of Action, the Court elects to consider them in the interest of efficiency.

As to the second element, Defendant argues that Plaintiff cannot allege prejudice because it is undisputed that there was no surplus equity in the property such that Plaintiff would have recovered anything from his junior lien interest, and that other liens, senior to Plaintiff’s lien, were about to foreclose. (Mem., 10:18-11:2; Reply, 6:1-4.) Plaintiff argues that the Complaint alleges the opposite; that there was sufficient equity in the property to reimburse Plaintiff’s lien, and further argues that the question of whether or not equity in fact existed is a disputed fact. (Opp., 5:9-20.) Plaintiff again fails to cite to the Complaint in support of what he contends it alleges. The Court has reviewed the Complaint and finds that it does not allege the facts that Defendant represents are “undisputed.” Rather, those purportedly undisputed facts raised by Defendant are matter outside the four corners of the Complaint and not subject to judicial notice.

Based on the foregoing, Defendant’s argument on demurrer as to the second element of the First Cause of Action is overruled.

As to the third element, Defendant argues that Plaintiff has not alleged tender, which *Arnolds Mgmt. Corp. v. Eischen* (1984) 158 Cal.App.3d 575, 580 expressly held is a required allegation even for a junior lienholder against a senior obligation. In Opposition, Plaintiff argues that the tender requirement is excused here because the sale is void and/or because requiring a judgment creditor to tender a senior lienholder’s debt, when the tender requirement is truly for debtors, is inequitable. Plaintiff attempts to distinguish *Eischen* by arguing that, there, the cause of action was based upon irregularities in the sale procedure; whereas, here, Plaintiff alleges that the sale is void.

Defendant does not dispute that the tender requirement may be excused where inequitable or where the sale is void. Defendant argues, however, that Plaintiff has failed to cite authority which specifically holds that tender is inequitable/not required for a junior lienholder. The Court agrees with Defendant that Plaintiff has failed to cite authority in support of his argument that tender is not required where inequitable, or that the circumstances here are distinguishable from those in *Eischen*.

Defendant next disputes that the sale is void, contending instead that, at most, it is voidable, based on the notice defects alleged in the Complaint. (Mem., 12:1-4.) Plaintiff argues that, whether the deed is void or voidable, presents a question that cannot be resolved on demurrer. The Court agrees that the question of whether a deed is void or voidable depends on several factors, including recitals in recorded documents, not appropriate for determination on a demurrer. (See *Dimock v. Emerald Properties LLC* (2000) 81 Cal.App.4th 868, 877; *Little v. Cfs Serv. Corp.* (1987) 188 Cal.App.3d 1354, 1358-59.) However, in light of the Court's above finding that the Complaint fails to allege that the trustee caused an illegal, fraudulent, or willfully oppressive sale, no factual basis remains to support Plaintiff's allegation that the sale is void or voidable.

Based on the foregoing, Defendant's argument on demurrer as to the third element of the First Cause of Action is sustained.

2. Second Cause of Action

Defendant's demurrer to the Second Cause of Action relies upon the same void/voidable and tender arguments Defendant advances in support of the First Cause of Action. (See Mem., 11:19-12:5.) Because the Court sustained those objections above, the demurrer to the Second Cause of Action is SUSTAINED.

3. Third and Fourth Causes of Action

As to the Third and Fourth Causes of Action, Defendant argues that they fail because both Plaintiff's and Defendant's claims to title were extinguished by the foreclosure sale and, without a claim to title, Plaintiff cannot maintain causes of action for Quiet Title or Judicial Foreclosure of Judgment Lien. (Mem., 12:15-13:16; Reply, 8:2-16, citing *Outten v. Bank of New York Mellon*, No. CV 13-4624, 2013 WL 6086899 (C.D. Cal. Nov. 18, 2013; *Eng v. Dimon*, No. 11-3173, 2012 WL 3649600 (N.D. Cal. Aug. 24, 212.) In general, "[a] senior foreclosure sale conveys the property free of all junior liens.... Thus, the junior no longer has a lien on the property, and the security has been entirely destroyed. A sold-out junior thus holds security that has 'become valueless' and is permitted to sue directly on the note." (*Bank of America v. Graves* (1996) 51 Cal.App.4th 607, 611-12)

Plaintiff does not dispute the general rule of extinguishment of a junior lien resulting from a foreclosure sale. Plaintiff contends that this argument assumes the disputed fact underlying the action—that the foreclosure sale was valid in the first place. (Opp., 7:22-8:15.)

While Plaintiff's argument might have merit, it necessarily relies upon the Complaint's

allegation that the sale is void or invalid. However, the only basis therefor alleged in the Complaint is that asserted in support of the first element of the First Cause of Action, which, as noted, fails. Therefore, Plaintiff's defense that neither Plaintiff's nor Defendant's claims to title extinguished because the foreclosure sale was void/invalid fails for lack of a basis therefor.

As such, the demurrer to the Third and Fourth Causes of Action is SUSTAINED.

4. Fifth Cause of Action

The demurrer to the Fifth Cause of Action is based on the fact that it is wholly derivative of the other causes of action. Because the other causes of action have all been sustained, the demurrer to the Fifth Causes of Action is also SUSTAINED.

5. Leave to Amend

Plaintiff is granted leave to amend. (*Angie M. v. Super. Ct.* (1995) 37 Cal.App.4th 1217, 1227 ["Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given."]; *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 ["Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment."].)